

Government in its political affairs. It is in the nature of a cooperative act, with the court lending its power because it is so inclined. Otherwise it is difficult to comprehend the immunity granted in such cases as *The Maipo*, a Chilean Navy transport chartered to a private person and trading commercially for private exporters. The libel in this case was for damages to a cargo of hides shipped aboard the vessel by a New Jersey corporation, from Uruguay to New York, and the State Department suggested immunity. The court noted that the vessel was a naval transport owned and possessed by the government; the naval officer, master and crew, on board, in the pay of the government. If the government considered trade a governmental function it was the business of Chile, and if the United States disapproved, the diplomatic and not the judicial branch would indicate it.¹³⁵ If the suggestion were the only criterion, there would be no need to discuss the elements of possession and operation; the effect of the suggestion would be automatic. It is submitted that the court, in treating a suggestion from the State Department, must be convinced of its applicability in face of other factors.

In *United States v. Deutches Kalysyndikat Gesellschaft*,¹³⁶ an action was brought in Equity to enjoin violation of the anti-trust laws by the defendants. The

¹³⁵ *The Maipo*, 252 F. 627 (D. C. N. Y. 1919), 259 F. 367 (D. C. N. Y. 1919).

¹³⁶ *United States v. Deutches Kalysyndikat*, see note 31 supra.